

Sharad Lahoti v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 September 2019 · WRIT - C No. 29037 of 2019 · WRIT - C No. 29037 of 2019 · **Interim stay of recovery from director personally; listed with companion vires writ.**

HEADNOTE

The petitioner, a director, challenged a 29.11.2016 recovery citation issued in the name of respondent no. 6 and the vires of Clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 as ultra vires Section 56 of the Electricity Act, 2003. A similar challenge in Writ C No. 11426 of 2016 had already been entertained with an interim restraint. The Division Bench listed this writ with that record, permitted recovery against respondent no. 6, and stayed recovery from the petitioner or his personal assets until further orders. Vires and merits were not decided. On 1.8.2025 the matter was listed for hearing.

FACTUAL SUMMARY

Sharad Lahoti, a former director of the consumer, challenged a 29 November 2016 recovery citation issued in the name of respondent no. 6 and the vires of Clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 as ultra vires Section 56 of the Electricity Act, 2003 read with Section 4(1)(d) of the Companies Act, 2013. Though the citation named respondent no. 6, officials were pressing recovery against the petitioner and visiting him. A similar vires challenge in Writ C No. 11426 of 2016 had already been entertained with an interim restraint.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(v)

director-personal-recovery-interim-stay

HOLDING

Pending a companion challenge to Clause 4.3(f)(v), recovery under the 29.11.2016 citation may be pressed against the named consumer (respondent no. 6) but shall not be recovered from the petitioner-director or his personal assets until further orders. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.3(F)(V) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 IS ULTRA VIRES SECTION 56 OF THE ELECTRICITY ACT, 2003 AND SECTION 4(1)(D) OF THE COMPANIES ACT, 2013

Writ directed to be listed with companion Writ C No. 11426 of 2016; affidavits to be exchanged. ¶ 1

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 29.11.2016 AS AGAINST THE PETITIONER

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